



CHAPTER 55.

An Act to resolve doubts as to the extent of certain restrictions affecting securities and to validate certain securities as respects which the restrictions were not complied with.

[20th November 1940.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) It is hereby declared, for the removal of doubt, that in Regulation 6 of the Defence (Finance) Regulations, 1939, (which restricts the issue of securities and certain transactions relating to securities, and was extended as from the twenty-third day of November nineteen hundred and thirty-nine to all mortgages, heritable securities and charges) the references to securities did not, before the said date, include references to any mortgages, heritable securities or charges, except those created by, or for the purpose of securing, debentures or debenture stock.

Declaration that certain mortgages, heritable securities and charges are not affected by control of capital issues.

(2) No security issued before the twenty-third day of November nineteen hundred and thirty-nine shall be invalid by reason that the consent of the Treasury was not given to the issue thereof, or that any conditions

imposed by the Treasury in relation to the issue thereof were not complied with, but nothing herein shall be construed as modifying the liability of any person to any penalty in respect of any failure to obtain such consent or comply with such conditions.

Short title.

2. This Act may be cited as the Securities (Validation) Act, 1940.

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